MINUTES OF MEETING

Each person who decides to appeal any decision made by the Board with respect to any matter considered at the meeting is advised that the person may need to ensure that a verbatim record of the proceedings is made, including the testimony and evidence upon which such appeal is to be based.

BOBCAT TRAIL
COMMUNITY DEVELOPMENT DISTRICT

The regular meeting of the Board of Supervisors of the Bobcat Trail Community Development District was held on **Tuesday, August 6, 2024, at 3:00 p.m.** at the Bobcat Trail Community Center, 1352 Bobcat Trail Blvd., North Port, FL 34288.

Present and constituting a quorum:

Jeffrey Brall	**Board Supervisor, Chair**
Richard Burke	**Board Supervisor, Vice Chair**
Steven Ball	**Board Supervisor, Assistant Secretary**
Michael SanAntonio	**Board Supervisor, Assistant Secretary**
Paul Fisher	**Board Supervisor, Assistant Secretary**

Also present were:

Belinda Blandon	**District Manager, Rizzetta & Company, Inc.**
David Jackson	**District Counsel, Persson, Cohen, Mooney, Fernandez & Jackson, P.A.**
John Fowler	**Landscape Inspection Specialist, Rizzetta & Company, Inc.**
Chris Berry	**LMP**
Bill Gipp	**LMP**
Audience	

FIRST ORDER OF BUSINESS **Call to Order/Roll Call**

Ms. Blandon called the meeting to order and read roll call.

SECOND ORDER OF BUSINESS **Pledge of Allegiance**

The Board, Staff and Audience recited the Pledge of Allegiance.

THIRD ORDER OF BUSINESS **Approval of Agenda**

Mr. SanAntonio added the proposal from the City of North Port for dumpster services and the proposal from Envera for access control of swimming pool bathrooms under New Business.

Mr. Fisher added a discussion of the 2024-2025 budget assessment under Old Business. Mr. Fisher also added a quick discussion regarding the agenda format for future meetings.

UNAPPROVED DRAFT – extracted from September 3, 2024 agenda packet

The District Manager was asked to add a presentation by Pam Hancock regarding insurance funds.

Mr. Jackson added the Quit Claim Deed form from Bobcat Villas for the lake to the Counsel's Report.

On a Motion by Mr. Brall, seconded by Mr. SanAntonio, with all in favor, the Board approved the agenda for the Bobcat Trail Community Development District as amended.

FOURTH ORDER OF BUSINESS **Public Comments**

Ms. Blandon advised that she would now open the floor for public comments. No audience members made public comments.

FIFTH ORDER OF BUSINESS **Consideration of the Minutes of the Board of Supervisors' Meeting held on July 02, 2024**

Ms. Blandon presented the Minutes of the Board of Supervisors meeting held on July 02, 2024, and asked if there were any questions, comments, and/or changes. There were none.

On a Motion by Mr. SanAntonio, seconded by Mr. Brall, with all in favor, the Board Approved the Minutes of the Board of Supervisors Meeting held on July 02, 2024, for the Bobcat Trail Community Development District.

SIXTH ORDER OF BUSINESS **Presentation by Pamela Hancock**

Ms. Hancock, as a representative of the District's insurance carrier, gave a brief presentation regarding the $5,000.00 check that the District received as a reimbursement for work already completed. Ms. Hancock stated that the check was mailed to the address provided.

SEVENTH ORDER OF BUSINESS **Ratification of FY 2022-2023 Financial Audit**

Ms. Blandon provided a brief overview of the audit for fiscal year end September 30, 2023, and advised that it is a clean audit with no findings for the current or prior year. She asked if there were any questions. There were none.

On a Motion by Mr. Fisher, seconded by Mr. Brall, with all in favor, the Board Ratified the Acceptance of the Audit for Fiscal Year End September 30, 2023, as Prepared by Grau & Associates, for the Bobcat Trail Community Development District.

EIGHTH ORDER OF BUSINESS **Discussion of HB 7013 – District Goals and Objectives**

UNAPPROVED DRAFT – extracted from September 3, 2024 agenda packet

Mr. Fisher led the conversation. The Board decided that its first goal is to work as a team in accordance with Florida law. The Board also decided on financial transparency as a second goal. It was agreed that a resolution will be brought forth at the next meeting to finalize the adoption of Bobcat Trail Community Development District's Goals and Objectives.

NINTH ORDER OF BUSINESS **Discussion of FY 2024-2025 Budget Assessment**

Mr. Fisher expressed concern with the 2024-2025 Budget Assessment regarding its accuracy. Ms. Blandon advised that she would have the budget reviewed within Rizzetta & Company's upper-management and that the concerns raised would be addressed after the fact.

TENTH ORDER OF BUSINESS **Discussion of Agenda Format**

Mr. Fisher raised concerns over the current agenda format. A discussion ensued about potentially scheduling a future operational workshop after the District's transitionary period has calmed.

ELEVENTH ORDER OF BUSINESS **Consideration of Contract for Professional Technology Services (Email Services)**

Ms. Blandon led the conversation. She advised that she does not yet have a copy of the current contract and asked that the item be tabled until she receives the contract and is able to review it. The board agreed without issue.

TWELFTH ORDER OF BUSINESS **Resident Concerns**

Mr. SanAntonio led the conversation. He shared a resident concern about guests under the age of fifteen using the fitness room. Mr. SanAntonio reiterated the current regulations stating that no one under the age of fifteen may use the fitness room.

THIRTEENTH ORDER OF BUSINESS **Discussion and Consideration of Proposals for Reserve Study**

Ms. Blandon listed three proposals received for the Reserve Study: Custom Reserves, LLC, Florida Reserve Study and Appraisal, and Reserve Advisors, LLC. Mr. Burke requested this item to be tabled, citing that it needed to be discussed in the workshop. The board agreed unanimously, and Ms. Blandon stated that the item will be listed on the next meeting agenda.

FOURTEENTH ORDER OF BUSINESS **Discussion and Consideration of Landscape Maintenance Proposals**

UNAPPROVED DRAFT
extracted from September 3, 2024 agenda packet

The Board discussed two landscape maintenance proposal options. The Landscaping Committee gave their overview and reported on what their recommendations were for each vendor respectively. Ms. Blandon raised concerns about clarifying certain costs in the contract, including storm clean-up, labor, hourly rates, machinery, irrigation, and controller costs. The Board then selected Artistree Landscape Maintenance & Design effective October 1, 2024.

> On a Motion by Mr. Brall, seconded by Mr. Burke, with all in favor, the Board approved the proposal from Artistree Landscape Maintenance & Design in the amount of $149,556.00 annually, subject to preparation of an agreement by District Counsel, and further authorized District Staff to send a Termination letter to LMP, effective October 1, 2024, for the Bobcat Trail Community Development District.

FIFTEENTH ORDER OF BUSINESS **Discussion and Consideration of Proposal from City Wide Facility Solutions for Community Center Janitorial Services**

Mr. SanAntonio explained the proposal provided by City Wide Facility Solutions for Community Center Janitorial Services.

> On a Motion by Mr. SanAntonio, seconded by Mr. Brall, with all in favor, the Board approved the proposal from City Wide Facility Solutions in the amount of $1,000.00 monthly, subject to preparation of an agreement by District Counsel, for the Bobcat Trail Community Development District.

SIXTEENTH ORDER OF BUSINESS **Discussion and Consideration of Proposal from Envera Systems for Barrier Arms (Updated Proposal Received)**

Mr. SanAntonio explained the proposal provided by Envera Systems. He advised that acceptance of the proposal would simplify maintenance of the gates by having just one vendor. Budget concerns were raised and addressed.

> On a Motion by Mr. SanAntonio, seconded by Mr. Fisher, with all in favor, the Board approved the proposal from Envera Systems in the amount of $17,495.77, subject to preparation of an agreement by District Counsel, for the Bobcat Trail Community Development District.

SEVENTEENTH ORDER OF BUSINESS **Consideration of Resolution 2024-08, Adopting a Meeting Schedule for Fiscal Year 2024/2025**

UNAPPROVED DRAFT
extracted from September 3, 2024 agenda packet

Ms. Blandon confirmed that there were no changes to the Meeting Schedule as presented.

> On a Motion by Mr. Brall, seconded by Mr. SanAntonio, with all in favor, the Board adopted Resolution 2024-08, approving the Meeting Schedule for Fiscal Year 2024/2025, for the Bobcat Trail Community Development District.

EIGHTEENTH ORDER OF BUSINESS **Discussion and Consideration of Proposal from the City of North Port for Dumpster Services**

Mr. SanAntonio covered the proposal received by the City of North Port for dumpster services. The Board held discussion.

> On a Motion by Mr. SanAntonio, seconded by Mr. Burke, with all in favor, the Board approved the proposal from the City of North Port, subject to review by District Counsel, for the Bobcat Trail Community Development District.

NINETEENTH ORDER OF BUSINESS **Discussion and Consideration of Proposal from Envera Systems for Access Control Solutions at Swimming Pool Restrooms**

Mr. SanAntonio covered the proposal received from Envera Systems for adding key fobs for swimming pool restroom access control to the current contract. The Board discussed. The addition of the key fobs totals $1,336.40, with a $16.01 monthly cost thereafter.

> On a Motion by Mr. SanAntonio, seconded by Mr. Fisher, with all in favor, the Board approved the proposal from Envera Systems in the amount of $1,336.40, and $16.01 monthly, subject to preparation of an amendment to the current contract by District Counsel, for the Bobcat Trail Community Development District.

TWENTIETH ORDER OF BUSINESS **Staff Reports**

A. Field Manager

Aquatics and Landscape Inspection Reports

Mr. Fowler began his report by addressing aquatics issues. He gave the Board an overview and reported algae formation in some of the lakes and ponds. Mr. Fowler stated that Ms. Bailey Hill is the account representative for Bobcat at Solitude Lake Management.

Mr. Fowler moved onto the landscape portion of his report. He advised it had not yet been sent out.

LMP pending payments were discussed. Ms. Blandon recommended sending a copy

UNAPPROVED DRAFT – extracted from September 3, 2024 agenda packet – not the official approved minutes

of the report to LMP with the cancellation letter, making the vendor aware of their deficiencies that need to be remedied and will be deducted from their final payment.

Board discussion ensued about payments withheld.

B. District Engineer
There was no report.

C. District Counsel
Mr. Jackson reported that the attorney for Celtic Bank was still having difficulty serving Clog 10. Mr. Jackson discussed concerns regarding discrepancies of various legal descriptions after review of the Johnson Engineering report.

Mr. Jackson discussed the Tract B Lake in Bobcat Villas. He advised that the Quit Claim Deed needed to deed the lake back over to the CDD was ready for execution if the Board so approved.

> On a Motion by Mr. SanAntonio, seconded by Mr. Ball, with all in favor, the Board approved the Quit Claim Deed to deed the Tract B Lake back over to the CDD, for the Bobcat Trail Community Development District.

Mr. Burke inquired about the possibility of revoking Mr. Rich Smith's fob rights.

Mr. Jackson advised that Rich Smith still technically owns the golf course. Mr. SanAntonio advised that he will review the issue and report back.

To date, no payment received from the mower for reimbursement of damages.

D. District Manager
Ms. Blandon advised that she is still working on the transition. She informed the Board that she will be working on several items, including the District contract schedule, as well as the organization of District Files.

Mr. Brall inquired about credit cards, which are currently in the name of Inframark. Mr. Scott Brizendine, who joined the meeting, advised that new cards are to be issued and a new account is currently in the process of being set up. Mr. Brizendine advised that he will share new information with the Board as soon as it becomes available.

Mr. Brall also inquired about direct deposit set-up and payments. Mr. Brizendine advised that Ms. Venessa Smith will assist with getting them set up with direct deposit. Mr. Brall also stated that the Board was not paid for the last workshop. Mr. Brizendine stated that he would have this issue investigated and resolved.

TWENTY-FIRST ORDER OF BUSINESS Other Reports

A. Infrastructure/Asset Management Committee (Board Workshop)
Mr. Brall advised that the next meeting is September 15, 2024, at 3:00 p.m., and if

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the Board has anything to add, please send it to him.

B. Landscape Committee

Mr. Brall advised that the Committee has been busy with reviewing proposals from potential vendors, among other matters such as the ongoing issues with LMP and unfinished work.

C. Newsletter Supervisor

Mr. Fisher advised that the newsletter would be released the weekend following the IA meeting, and that if anyone had anything to please send it to him.

D. Finance Supervisor

Mr. Fisher advised that there was one concern with the 2025 budget. He expressed concerns over the $112,000 golf course assessment being listed under income without knowing for certain that those funds will be recouped.

Discussion ensued about scheduling a workshop with the Board for budget review, O&M review, and an overall financial review. Ms. Blandon and the Board compiled a few tentative dates and Ms. Blandon advised that she would reach back out.

E. Lakes and Roads Supervisor

i. Solitude Waterway Inspection Report:

Mr. Ball provided the following updates: Solitude was recently spraying for weeds, and they are scheduled to come back out this week for some algae-related work. Mr. Ball advised that Solitude plans to take a more aggressive approach with the algae due to the heat.

ii. Solitude Monitoring Reports

iii. Seal Coating Roads RFQ Discussion:

Mr. Brall also expressed a desire to get with Ms. Blandon to work on an RFP for resurfacing the roads. Ms. Blandon was agreeable and stated that they could begin having potential vendors come in for presentations.

F. Maintenance Supervisor

Mr. Burke advised that the recharge well has been turned off. He also reported that water usage coming out of the pump house has been holding steady, and that there are no leaks at this time that need attention.

G. Facilities Supervisor

Mr. SanAntonio advised that repairs to the residents' arm gate have been conducted by Envera, and that the issue with the cameras at back gate 2 are currently under review. The repairs on the air conditioning in the gatehouse is on hold pending the arrival of a necessary part. Mr. SanAntonio also advised that new WiFi thermostats have been installed, which will make monitoring the performance of air conditioning in spaces such as the gatehouse much more efficient.

H. HOA Updates

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extracted from September 3, 2024 agenda packet

Mr. SanAntonio advised that there would be no HOA meeting in August. The next meeting for the Master HOA will be September 17, 2024, at 10:00 AM.

I. Commercial Properties

There were no updates for commercial properties.

J. Community Emergency Response Team (CERT)

The Leadership Committee report provided a door-to-door plan utilizing internal and external resources, including consulting with North Port Emergency Management.

North Port Fire Department will be coming out in September to provide instructions on how to properly use a fire extinguisher in conjunction with Fire Prevention Month in October. The event will be open to the entire community.

Walkie talkies have been purchased by the CERT team to utilize in case of emergencies.

THIRTEENTH ORDER OF BUSINESS Public Comments

A resident inquired about whether the CDD has yet put a lien on the golf course. The resident was informed that the CDD has not put a lien. The resident then inquired as to why. The resident was informed that the assessment must come before a lien can be filed and can only then be filed if the assessment is not paid.

A resident inquired about whether they are billed for the attorney to review contracts. The resident was informed that they are billed for the attorney to review the contracts. Ms. Blandon explained that legal review is required for contracts statutorily to ensure that the proper language is included. The resident then questioned if attorneys are necessary for basic contract review, to which he was then informed that they are.

A resident expressed concerns about the weeds in their lake that need attention. The resident was informed that they will be attended to.

FOURTEENTH ORDER OF BUSINESS Supervisor Requests

Ms. Blandon asked if there were any Supervisor requests or comments. There were no Supervisor requests or comments.

FIFTEENTH ORDER OF BUSINESS Adjournment

Ms. Blandon stated that there was no further business to come before the Board and asked for a motion to adjourn.

On a Motion by Mr. Brall, seconded by Mr. Ball, with all in favor the Board adjourned the meeting at 4:52 p.m., for the Bobcat Trail Community Development District.

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383 _____ _____
384 Secretary/Assistant Secretary Chairman/Vice Chairman

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